



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 6, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202001855 regarding Police Officer Nicholas Cardieri, Tax No. [REDACTED]
(DADS No. 2022-24936)

Dear Mr. Darche:

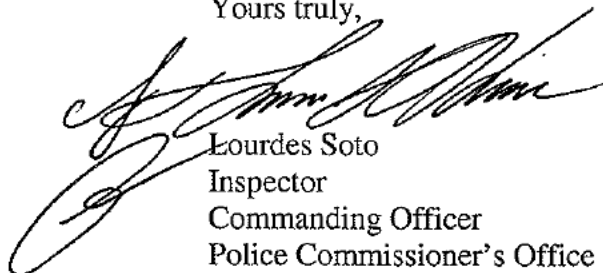
The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the proposed penalty outweighs the alleged misconduct committed in this case. An individual accused Police Officer Cardieri of threatening to arrest her. As a way to bolster her claim, the same individual produced two witnesses who corroborated that Police Officer Cardieri allegedly made a threat to arrest. However, Police Officer Cardieri strenuously denied the allegations that he ever threatened to arrest any individual on the night in question. Similarly, Police Officer Cardieri's partners did not witness him threatening to arrest anyone on the date of the incident.

It must be noted that the allegations against Police Officer Cardieri lack context as there is no independent video footage that would corroborate either party's version of events. Furthermore, Police Officer Cardieri's excellent employment history with the Department, including his above-average rating by his Commanding Officer, as well as his lack of prior substantiated CCRB complaints must be taken into account when evaluating the facts of this matter.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Cardieri receive training from the Legal Bureau as it relates to the circumstances under which an officer may arrest, or threaten to arrest an individual, specifically for disorderly conduct, in accordance with New York State Penal Law Section 240.20 (Disorderly Conduct) and Patrol Guide Procedure 208-10 (Law of Arrest).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', is written over the typed name and title. The signature is fluid and cursive, with a large loop at the end.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office